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KINSHIP, IDENTITY AND FOURTH-CENTURY FRANKS

*Francus ego cives Romanus miles in armis.*¹ Franks have a significant place in Roman military service in the fourth century. Yet they are often not seen in their proper context and this has given rise to two erroneous generalisations: first, that their kinship structures break up as a result of Romanisation; and second, that, consequently, there is little contact, or as one commentator puts it, “solidarity”, between Franks inside and outside the empire. This paper will reject these conclusions and show both the continuing significance of the local habitat for Germans and the continuing contact between Franks inside and outside the empire. It will show the way in which Franks and other Germans in Roman military service in the fourth century retained their particular social formations, as represented by kinship, even within Roman military structures, and also within their own settlements throughout the northern periphery of empire. In setting out this thesis, the term ‘kinship’ is understood loosely: it is used to denote both the immediate familiar unit and the broader cultural grouping that is the *ethnos*.

There are problems in identifying Franks or Germans in our sources. This is in itself interesting in showing that, while ethnic stereotypes have an important ideological role as a general representation, when it came to individuals, ethnicity was not a primary distinguishing criterion. The fundamental problem is that Germans in the Roman army are either not identified as such or are actually called ‘Romani’. This does not mean that they have severed their ties and become Romans. *CIL* III 3576, quoted above, shows the equal importance of both, a ‘multicultural’ identity. Despite this there are a number of Franks who can be identified by name and many other Franks whose existence can be discerned and whose dual place in Roman and Germanic structures can be illustrated.

The following questions are posed: (i) to what extent did Franks abandon their own customs and social structures, either when they moved away from their homelands or stayed locally? and (ii) what difference did being within a Roman structure make to Franks in Rome’s service? It will be postulated that there was a continuing importance attached to groupings, customs and social structures wherever Franks served, and that there were continuing links across northern Europe, on both sides of the political frontier of the Rhine.

1 *CIL* III 3576 (*ILS* 2814). The full inscription reads *Francus ego cives Romanus miles in armis, egregia virtute tuli bello mea dextera sem[p]er*. It comes from the middle Danube (museum Budapest).

In the third and fourth centuries A.D., Roman citizens became less willing to be dragooned into long and unprofitable military service, and their place was filled increasingly by Germanic recruits. The trend to the recruitment of Germans and their accommodation within the empire has long been recognised in scholarship. However, there has been an underlying assumption that once Germans left their homelands for Roman service, they loosened ties with their *ethnos*, that they became romanised, loyal subjects of the empire.

A. H. M. Jones, in his *The Later Roman Empire* (1964), writes that “many Germans lost touch with their people, and became completely assimilated”. He minimises cross-border links among the rank and file and states of the officer class:

Those Germans of whom we know anything, those, that is, who rose in the service and made names for themselves, certainly became thoroughly romanised, and quite lost contact with their homes.²

This assumption has received widespread endorsement in regard to Franks. Liebeschuetz sums up the convictions of numerous scholars in observing that “there was little sense of solidarity between free Franks and Franks in service of the Empire”.³ This belief in the relaxation of Frankish kinship ties and the expression of new-found loyalty to empire requires examination.

At first sight the evidence for Franks is paltry. Despite the fact that our knowledge of the late Roman military becomes more detailed after 353 with the extant history of Ammianus, there are only fourteen men and two women who are attested as Franks in the fourth century. The men are Bonitus, Silvanus and his son, Laniogaisus, Malarichus, Mallobaudes I, Mallobaudes II, Fl. Bauto, Fl. Richomeres, Arbogastes,⁴ an unknown *candidatus*,⁵ an anonymous from the

2 A.H.M. Jones, *The Later Roman Empire 284–602. A Social, Economic, and Administrative Survey* (Oxford, 1964) 622.

3 J.H.W.G. Liebeschuetz, *Barbarians and Bishops. Army, Church, and State in the Age of Arcadius and Chrysostom* (Oxford, 1990) 8. See also K.F. Stroheker, “Zur Rolle der Heermeister fränkischer Abstammung im späten vierten Jahrhundert”, *Historia* 4 (1955) 323; L. Musset, *The Germanic Invasions. The Making of Europe*, trans. E. & C. James (University Park, Pennsylvania, 1975) 71; R.I. Frank, *Scholae Palatinae. The Palace Guards of the Later Roman Empire* (Rome, 1969) 68; A. Wardman, “Usurpers and Internal Conflicts in the Fourth Century A.D.”, *Historia* 33 (1984) 229; E. James, *The Franks* (Oxford, 1988) 43–44.

4 M. Waas, *Germanen im römischen Dienst im 4. Jh. n. Chr.* (Bonn, 1965) “Prosopographie” 81–134. The following possibilities suggested by Waas are not accepted because of lack of evidence: Bappo, Charietto I, Charietto II, Lutto, Maudio, Merobaudes I, Merobaudes II and Teutomeres. The time lapse indicates that Mallobaudes I, *tribunus armorum* in 355 is not the same man as Mallobaudes II, *comes domesticorum* and *rex Francorum* in 378 (as noted by P. de Jonge, *Philological and Historical Commentary on Ammianus Marcellinus* vol. 3 [Groningen, 1948] 83 and Waas p. 108; contra *PLRE* vol. 1, 539).

5 Jerome, *Vita Hilarionis* 22 (in *PL* 23, cols 40–41).

Danube,⁶ and, on the basis of matrilineal kinship, Fl. Magnus Magnentius and Magnus Decentius. The women are Aelia Eudoxia (the daughter of Bauto) and the anonymous mother of Magnentius.⁷ This list, as it stands, suggests that Franks had a negligible impact on the history of the fourth century, and that those who became 'known' were fully romanised through years of service. However, such a conclusion is to ignore the methodological imperatives of our sources.

Ammianus' references to Franks illuminate this. Ammianus denies troops their Germanic origins and counts those barbarians serving in the Roman army as 'Romani'. Only when a Frank attains high-ranking office might his identity be indicated. For example, Ammianus knew that a large number of Germans served in Julian's auxiliary units,⁸ but in his account of the battle of Strasbourg ethnic differences on the Roman side are glossed over because of the literary custom of portraying a sharp distinction between *Romani* and *barbari*, between 'us' and 'them', or 'the other'. The same artificial polarity is present in his description of the battle of the regiments, the Petulantes and Celtae, with the Alamans, where the former are considered to be 'Roman' despite being composed of Germans and northern Gauls.⁹ The presence of Franks is otherwise indicated in unexpected circumstances, such as the plot to implicate members of Constantius' court in treason in 355, which revealed a "great number" (*multitudo*) of Franks serving at court. Were it not for the strife brewing in Cologne and the plot against Silvanus, this instance of Franks in Roman service would be lost (see below).

Furthermore, an absence of Germanic names does not necessarily indicate an absence of Germans. As a result of interaction with the northern provinces, Germans had long adopted Roman names. Iulius Paulus and Iulius Civilis, leaders of the Batavians in the first century, were of royal German stock.¹⁰ In the late empire, the praenomen "Flavius" was a favourite of the new citizens

6 *CIL* III 3576.

7 Eudoxia: *PLRE*, vol. 2, 410; Magnentius' Frankish mother: J. Bidez, "Amiens, ville natale de l'empereur Magnence", *REA* 27 (1925) 312–18; Waas (as in n. 4) 105; *PLRE*, vol. 1, 532.

8 *Amm.* 16.12.42–48; D. Hoffmann, *Das spätrömische Bewegungsheer und die Notitia Dignitatum* vol. 1 (Düsseldorf, 1969) 137–42, 158–60.

9 *Amm.* 21.3.1–3. Hoffmann's belief (as in n. 8) p. 155 that the Petulantes and Celtae were composed of Germans is too narrow. It is more probable that they were recruited throughout northern Europe. Momentum is gaining against Hoffmann's theses on the date of creation and Germanic constitution of the late-Roman auxiliary units, see C. Zuckerman, "Les 'Barbares' romains: au sujet de l'origine des *auxilia* tétrarchiques", in M. Kazanski and F. Vallet, *L'Armée romaine et les barbares* (Rouen, 1993) 17–19; and H.W. Elton, *Warfare in Roman Europe AD 350–425* (Oxford, 1996) ch. 5 "Recruiting".

10 *Tac. Hist.* 4.13.

who emerged under Constantine, in time gaining vogue in wider circles. It was adopted extensively by barbarians in Roman service. Given the numbers of barbarians brought into the Roman army by the House of Constantine, it is understandable that they should adopt the *gentilicium* of their *patronus*. Hence, "Flavius" often denoted men of barbarian or low birth and there are numerous Flavii active in the north as military leaders.¹¹ In a rare instance the transrhene provenance of one Flavius, Fl. Bauto, is actually attested.¹² Thus, when a reliable source like Ammianus records that Constantine was accused of being the first Augustus to raise barbarians to the consulship, we must take him at his word, even though the extant consular list for his reign exhibits only Roman names.¹³ Without such an aside, knowledge of barbarian consuls under Constantine would be lost.

It must be remembered that our sources do not consider ethnicity a significant factor and they disguise the number and origins of Germans fighting in the Roman army. They are only interested in Franks when Franks are linked to southern structures. In other words, our sources only give us a centralist viewpoint, a tyranny of southern opinion. From the Roman perspective, once part of the Roman army, Franks join the multitude of common soldiers and are counted as *Romani*. The *CIL* epitaph, however, indicates that a Frank placed equal weight on both identities: *Francus ego cives Romanus miles in armis*. While functioning in Roman structures, this man has retained his Frankish identity. The point is lost on modern scholars who tread the same centralist path and emphasise *Romanus miles* over *Francus cives*, and construct an oversimplified view of Late Antiquity in terms of 'Romans' versus 'Germans'.¹⁴ On this analysis, Roman armies face Frankish armies across the Rhine until the empire falls sometime in the fifth century.¹⁵ The reality is far more complex.

Does the reckoning of Germans as Romans by sources such as Ammianus mean that the large underworld of Germans which existed in Roman structures

11 Notable northern Flavii include Fl. Iovinus, Fl. Lupicinus, and Fl. Nevitta. The adoption of Roman names often makes it impossible to distinguish northern Gauls from barbarians. For general comments on "Flavius" see J.G. Keenan, "The Names Flavius and Aurelius as Status Designations in Later Roman Egypt", *ZPE* 11, 1973, 37–40; R.S. Bagnall, A. Cameron, S.R. Schwartz and K.A. Worp, *Consuls of the Later Roman Empire* (Atlanta, 1987) 36–40.

12 Ambrose, *Ep.* 24.8 (in *PL* 16, col. 1081).

13 Amm. 21.10.8. Consular list: T.D. Barnes, *The New Empire of Diocletian and Constantine* (Cambridge Mass., 1982) 93–97.

14 The evocative "Barbarians and Romans" and its variants is a favourite: W. Goffart, *Barbarians and Romans A.D. 418–584. The Techniques of Accommodation* (Princeton, 1980); E.A. Thompson, *Romans and Barbarians. The Decline of the Western Empire* (Madison, 1982); J.D. Randers-Pehrson, *Barbarians and Romans. The Birth Struggle of Europe A.D. 400–700* (London, 1983).

15 Most recently, H. Elton, "Defence in Fifth-Century Gaul", in J. Drinkwater and H. Elton (eds.), *Fifth-Century Gaul: a Crisis of Identity?* (Cambridge, 1992) 168.

were actually loyal and integral to those structures? Although our list of attested Franks is small, we can use it because it gives us access to a wider network, and, in examining this network, we shall adopt a counter-perspective, the northern perspective, the perspective of *Francus cives*.

In what follows we shall consider instances of Germans internal to the Roman empire. The general assumption is that once a German left his homeland for Roman service he severed his kinship ties, and that a German, having sampled the amenities of Roman civilisation, was unlikely to return to the mud and squalor of his homeland. A barrier is envisaged between romanised German and transrhene German. In both Jones and Liebeschuetz, and in most scholars who repeat the assumption of the severance of societal links, one example is invariably quoted in support, the example of Silvanus.¹⁶

A career soldier of Frankish extraction in the late Roman army, Silvanus was stationed in Cologne as *magister peditum* in order to quell lawlessness in the Gallic provinces. After being accused falsely of treason, he thought of seeking sanctuary in barbarian lands. However, a tribune, Laniogaisus warned him that the Franks “whence he [Laniogaisus] sprang” (*unde oriebatur*), would kill him or ransom him back to the Augustus, and thus he dissuaded Silvanus from adopting this course of action.¹⁷

Ammianus Marcellinus portrays Silvanus as a tragic figure, a man of military *uirtus*, loyal to Roman *imperium*, ensnared by mendacious conspirators and overwhelmed by events. It is tempting to embellish the account and deepen the tragedy, to perceive a loyal minion of Rome stripped of his former identity and having nowhere to turn when framed by perfumed sycophants and palatine plotters. If such an assessment of Silvanus is sound, it is exceptional. Other Germans do retain their crossrhene ties and examples other than Silvanus can be cited to show cultural interaction.

In 354, three Alamans, Latinus, *comes domesticorum*, Agilo, *tribunus stabuli*, and Scudilo, *rector scutariorum*, were suspected of betraying the strategy of the Roman army to their people.¹⁸ Before the battle of Strasbourg, an unknown *scutarius* went over to the Alamans and informed them as to the

16 Jones (as in n. 2) p. 622: “Perhaps the most striking instance of the denationalisation of a German officer is the Frank Silvanus (not a few Germans took Roman names), *magister peditum* under Constantius II”; Liebeschuetz (as in n. 3) p. 8: “Silvanus considered taking refuge with the free Franks outside the Empire, but decided against it, fearing that they would either kill or surrender him. There was little sense of solidarity between free Franks and Franks in the service of the Empire.”

17 Amm. 15.5.16. W. den Boer has shown that Silvanus’ soldiers instigated the revolt rather than the general himself who had paid them in Constantius II’s name four days previously, “The Emperor Silvanus and his Army”, *Acta Classica* 3 (1960) 107–8. For the payment of the troops, Amm. 15.6.3.

18 Amm. 14.10.7–8.

extent of Julian's forces; it is probable that the man was himself an Alaman.¹⁹ A king of the Alamans, Mederichus, had been kept hostage in Gaul for a long time and, on account of learning certain Greek mysteries, he decided to change his son's name from Agenarichus to Serapio; despite all this it was Serapio who, with Chonodomarius, led the Alamannic army against Julian in 357.²⁰ In 377, an Alamannic imperial guardsman returned home (*in larem*) because of pressing business; a fact which is known only because he revealed secrets of Roman troop movements.²¹ Tomlin has demonstrated that information crossed the Rhine both ways, assisted by the steady flow of deserters, hostages, captives, volunteers and delegations.²² Böhme's exhaustive study of the material culture between the Elbe and Loire highlights strong crossrhene contacts from the mid-fourth century. He points to artefacts such as jewellery of similar manufacture found between the Elbe and the Weser and again in northern Gaul, and *cingula* from the late Roman army found deep within modern Germany, and concludes they were brought by soldiers who returned to their homelands.²³ Contact of this nature explains how transrhene houses came to be built after Roman custom.²⁴

Indeed, our understanding of the nature of the frontier as a zone of cultural and commercial interaction has deepened as a result of recent work.²⁵ The length of the Rhine was a political boundary but, in cultural and physical terms, it was not a barrier delineating 'Roman' from 'German'. There was considerable acculturation and crossrhene interaction, which was most apparent on the lower Rhine and in northern Gaul, the region which acted as a catchment area for Germanic newcomers and thus, for Germanic recruits. The Rhine was a highway through a unified geographical region.²⁶

19 Amm. 16.12.2.

20 Amm. 16.12.25.

21 Amm. 31.10.3 & 20.

22 R. Tomlin, *The Emperor Valentinian I* (Oxford D.Phil. Thesis, 1973) 99–101, 136; see also A.D. Lee, *Information and Frontiers. Roman Foreign Relations in Late Antiquity* (Cambridge, 1993) 128–42.

23 H. Böhme, *Germanische Grabfunde des 4. bis 5. Jahrhunderts zwischen unterer Elbe und Loire. Studien zur Chronologie und Bevölkerungsgeschichte* (Munich, 1974) vol. 1, 193–94. Böhme's interpretation of an intrusive Germanic material culture has been revised by E. James, "Cemeteries and the Problem of Frankish Settlement in Gaul", in P.H. Sawyer (ed.), *Names, Words and Graves: Early Medieval Settlement* (Leeds, 1978) 74–77; and G. Halsall, "The Origins of the *Reihengräberzivilisation*: Forty Years on", in J. Drinkwater and H. Elton (eds.), *Fifth-Century Gaul: a Crisis of Identity?* (Cambridge, 1992) 196–204. Böhme's research documenting extensive cross-border contact still stands, however.

24 Amm. 17.1.7.

25 C.R. Whittaker, "Trade and Frontiers of the Roman Empire", in P. Garnsey and C.R. Whittaker (eds.), *Trade and Famine in Classical Antiquity* (Cambridge, 1983) 111; B. Isaac, *The Limits of Empire. The Roman Army in the East* (Oxford, 1990) ch. 9.

26 C.R. Whittaker, *Les frontières de l'empire romain* (Paris, 1989); J. Barlow, *The Success*

In the mid fourth century, Julian attracted large numbers of volunteers who left their transrhene homes and entered his army with the proviso that they never be sent beyond the Alps. They retained their love of the north and made it clear that they did not want to leave the “lands of their birth”.²⁷ Other Germans were settled by Julian. The largest instance is that of the *Salli* who already lived on Roman soil and formally surrendered “with their goods and children”.²⁸

Some have held that the *limes* on the lower Rhine was abandoned only to be re-established along the Cologne-Tongres-Bavai-Boulogne road, the so-called *limes Belgicus*.²⁹ The thesis is fanciful, given that most roads leading west from the Rhine were similarly fortified, and it reflects a centralist perspective which searches for distinct parameters and a coherent ‘defence strategy’.³⁰ Instead, the ‘medieval’ landscape of *castella* and fortified towns in the Gauls was rather a response to regional lawlessness from cisrhene as well as transrhene brigands. The army was also a ‘police force’ to observe the Roman provinces;³¹ the Gallic provinces in particular were susceptible to social unrest caused by *Bagaudae*. Three aspects of Gallo-Roman ‘defence’ in the fourth century can be observed: it relied on the local forces, on transrhene allies and on the imperial presence in Trier. Northern Gaul was a buffer zone between the rich Gallic provinces to the south and non-Roman Europe to the north. Politically, it was Roman, but culturally it was evolving into something else, a region with an

of the Franks. *Regional Continuity in Northern Gaul in Late Antiquity* (PhD Thesis, University of Sydney, 1993) ch. 1.

- 27 [Julianus] *illud tamen nec dissimulare potuit nec silere: ut illi nullas paterentur molestias, qui relictis laribus transrheneis, sub hoc venerant pacto, ne ducerentur ad partes umquam transalpinas, verendum esse affirmans, ne voluntarii barbari militares, saepe sub eius modi legibus assueti transire ad nostra, hoc cognito deinceps arcerentur*, Amm. 20.4.4; [Proceres] *qui liberaliter ita suscepti, dolore duplici suspensi discesserunt et maesti, quod eos fortuna quaedam inclemens et moderato rectore et terris genitalibus dispararet*, Amm. 20.4.13.
- 28 ... *cum opibus liberisque*, Amm. 17.8.4; Julian, *ad Ath.* 280B; Eunapius, fr. 18 (ed. Blockley).
- 29 A restatement of the *limes Belgicus* thesis: J. Mertens, “Quelque considérations sur le *limes Belgicus*”, in J. Fritz (ed.), *Limes. Akten des XI. Internationalen Limeskongresses* (Budapest, 1977) 63–68. The thesis itself is a ghost of nineteenth century Nationalism. Road fortifications: H. von Petrikovits, “Fortifications in the North-Western Roman Empire from the Third to the Fifth Centuries A.D.”, *JRS* 61 (1971) 188–89.
- 30 Hence E.N. Luttwak’s centralist *The Grand Strategy of the Roman Empire. From the First Century A.D. to the Third* (Baltimore, 1976). Valid criticisms of this work are made by J.C. Mann, “Power, Force and the Frontiers of the Empire”, *JRS* 69 (1979) 175–83; and Isaac (as in n. 25) Ch. 9.
- 31 Isaac (as in n. 25) p. 2 formulated this argument for the eastern provinces, but it is transferable to the north. For Tacitus, the Rhine was Rome’s principal strength against both Germans and Gauls, *Ann.* 4.5.1.

identity that could smoothly accommodate newcomers.³² The evidence of cross-rhenane interaction warns us that the example of Silvanus should not be cited as if it were the norm. Franks did retain ties with their peoples outside the empire.

A different model to that of Silvanus, taken from the eastern empire, illustrates the functioning of a 'multicultural' society in Late Antiquity. The *Story of Euphemia*, set in the late fourth century and written in Syriac, tells of a certain Goth who was stationed in Edessa on service in the Roman army. The Goth had learned to speak Syriac and had arranged his marriage to a young girl, Euphemia, who resided in the house in which he was billeted. When the threat which had brought the Goth's unit to Edessa ceased, he returned to his homeland taking his young bride with him. On the way, he revealed to Euphemia that he had a wife already, and because he was fearful of rousing his wife's kinsmen, he intended to treat her as a slave. When he carried through his intent, Euphemia, in her anguish, prayed to God and the blessed martyrs and, behold, she was spirited back home! The Goth was later redeployed in Edessa with his unit, where his perfidy and deceit were revealed, and justice obtained for Euphemia.³³

We can surmise that the Goth originated in the trans-Danubian region and was from a settlement of his countrymen in Thrace. There are two parts to the Goth's life which merit consideration: his old and new identities. The presence of his wife and kinsfolk attest to a degree of social continuity with his origins, yet his acquisition of Syriac and desire for an Edessan bride attest to an acceptance of a new social order. The Goth shows all the signs of being assimilated *and* of having retained his kinship ties. We ought not privilege one structure over another. In similar fashion we note that the ginger-haired Frank in Jerome's *Life of Hilarion* spoke Frankish and fluent Latin and, indeed, speaking in tongues, he answered the Holy Man in Syriac!³⁴

The *Story of Euphemia* pertains both to our knowledge of Germanic kinship structures and that of fourth-century Germans other than Silvanus. The kinship group was the instrument of social control and the constraint on social behaviour, and kin did assist each other if required. When Julian's army began plundering transrhenane territory, those Germans who were awaiting the Romans in ambush rushed off to support their kin.³⁵ Alternatively, Franks serving in Roman structures retained their kinship ties. In 378, when an Alamannic people, the Lentienses,

32 Barlow (as in n. 26) 140–42, 180–81.

33 In F.C. Burkitt, *Euphemia and the Goth, with the Acts of Martyrdom of the Confessors of Edessa* (London, 1913) especially pp. 131–146.

34 Jerome, *Vita Hilarionis*, 22 (in *PL* 23, col 41).

35 [*Germani*] *trans Menum nomine fluvium ad opitulandum suis necessitudinibus avolarunt*, Amm. 17.1.6. In the winter 357–58 Frankish raiders holed up in the two *munimenta* on the Meuse awaiting relief. It is probable that they waited for their kinsmen, although Ammianus, not concerned with details in this instance, says only that a relieving force of Franks had set out, 17.2.4.

attacked Roman territory, the defence of the Gallic provinces was entrusted to Nannienus and to Mallobaudes II, who is styled *comes domesticorum* and *rex Francorum*.³⁶ Neither the fact that Mallobaudes II had been granted the rank *comes* nor his Roman service negated his status as a Frankish king and his ties with his transrhene kingdom. As well as defending Roman territory in 378, Mallobaudes II, the “warlike king” (*bellicosus rex*), also ambushed the invading Alaman king Macrianus in *Francia*.³⁷ Despite his Roman service and the rank of count, Mallobaudes II had retained his royal status and his kinship loyalties, in returning to defend his homeland from attack.³⁸ It is not surprising, therefore, that Germans, while in Roman structures, did continue to express loyalty along lines of indigenous social structures. In the case of our perfidious Goth, he maintained links with his home environment despite his Roman service and despite fearing the vengeance of his wife’s kin.

One of the two Frankish women known to the historical record is the anonymous mother of another Roman *comes* and usurping emperor in 350, Magnus Magnentius. We know little of Magnentius’ mother beyond the fact that her son was born a *laetus* possibly in Amiens.³⁹ A Frankish identity is significant because of the bilateral character of Frankish kinship; that is, kinship and inheritance ties were maintained on both paternal and maternal sides.⁴⁰ It is these ties which supply evidence of wider social structures across northern Gaul and non-Roman Europe. The ability to summon transrhene kin had a long history in northern Gaul and is observable in the writings of Caesar, Tacitus and Dio.⁴¹ In the middle of the fourth century, Magnentius also exploited his kin. The future emperor Julian, while he was gaining first-hand knowledge of events in Gaul, observed that Franks and Saxons from beyond the Rhine had followed Magnentius most ardently in his revolt because of his kinship ties with them, and that they followed him because they were his people, tied by race.⁴² A clement Constantius was later praised for sparing the

36 Amm. 31.10.6. Mallobaudes II is a precursor to Hariulfus (*PLRE*, vol. 1, 408) and fifth-century examples like Gundobades.

37 Amm. 30.3.7.

38 Mallobaudes II recalls the earlier instance of Arminius, who served in Roman *auxilia*, gaining equestrian rank, before returning to his homeland. He was still an equestrian when he directed the defeat of Varus in A.D. 9.

39 Zosimus, 2.54.1; Bidez (as in n. 7). There are no *laeti* attested at Ambiani in the *Notitia Dignitatum* (*Oc.* 42.33–44), although the list is incomplete.

40 A.C. Murray, *Germanic Kinship Structure. Studies in Law and Society in Antiquity and the Early Middle Ages* (Toronto, 1983) 135–62, 218–19. Kin relations were bilateral in Merovingian Gaul, S.F. Wemple, *Women in Frankish Society. Marriage and the Cloister 500 to 900* (Philadelphia, 1981) 51–52, 58–59.

41 Caesar, *BG* 3.11, 6.2; Tac. *Hist.* 4.14; Dio, 51.20.5.

42 ἡκολούθουν δὲ αὐτῷ κατὰ τὸ ξυγγενὲς ξύμμαχοι προθυμότατοι Φράγγοι καὶ Σάξονες, Julian, *Or.* 1.34 D; τούτων δὴ τῶν ἐθνῶν ἐξαναστήσας οὐκ ἔλαττον πλῆθος τῆς

usurper's allied kin.⁴³

Magnentius' use of the armed support of his kin met with a hostile response from the court of the legitimate Augustus, and he was accused of being a barbarian and not a Roman citizen.⁴⁴ Such accusations are highlighted as part of the rhetorical denunciation of him; but they were not invented. Magnentius' personal style was to side with the rank and file,⁴⁵ and his provincial and barbarian extraction held appeal in the 'multicultural' society in northern Roman and non-Roman Europe. Like Mallobaudes II, he was a Roman *comes* who maintained transrhene kinship ties.

Magnentius' usurpation revealed that northern tribal loyalties could be used against the central administration. It had also upset the status quo in the Gallic provinces and fueled resentment in the central administration against northern commanders. This is the paranoia which drives the attempt by Lampadius, Praetorian Prefect of Gaul, and prominent Romans to bring false accusations against Silvanus and to implicate the palatine Franks in treason (355).⁴⁶ Rather than the intrigues of courtly sycophants,⁴⁷ the Silvanus affair was impelled by the wider fear that central authority was devolving to semi-barbarian commanders in northern Gaul.

Ammianus says that the forged letters exhorted Silvanus' friends "within the palace or private citizens" (*intra palatium vel privatos*) to help him in his treason, and that they had named certain *tribuni* and *privati*. "Within the palace" could just mean imperial servants, but as tribunes were impeached, it is directed at this specific group of military officials. The *privati* named in the letters were ordered to be brought from the provinces.⁴⁸ Given that Silvanus was stationed in Gaul and that the Praetorian Prefect of Gaul had submitted the letters to Constantius' consistory, the provinces in question were the Gallic provinces.

οἴκοθεν αὐτῷ ξυνεπισπομένης στρατιᾶς, μᾶλλον δὲ τὸ μὲν ὡς οἰκεῖον εἶπετο πολὺ καὶ αὐτῷ ξύμφυλον, 2.56 C. The panegyrist goes on to explain in the latter passage that Magnentius' Gallic supporters only joined him through compulsion (an unconvincing excuse). The first oration was a library study, probably delivered in 355; in the second oration, however, Julian is drawing on his own experiences in northern Gaul (see paragraph 56B).

43 οἰκειότερα ... φιλία, Julian *Or.* 2.96A.

44 Julian, *Or.* 1.34A, 1.42A–B, 2.56C, 2.57A, 2.95C. Julian is writing propaganda; elsewhere positive assessments of Magnentius survive, Zosimus, 2.54.2; Libanius, *Or.* 18.33. As a *laetus*, Magnentius was a Roman citizen. On northern *laeti*, see Barlow (as in n. 26) 128–29.

45 Julian, *Or.* 1.34A.

46 Amm. 15.5.3–5: the *factio* of conspirators was Dynamius, Eusebius, Aedesius and Lampadius.

47 "Certain courtiers" according to Liebeschuetz (as in n. 3) 8.

48 Amm. 15.5.4–5.

The vigorous defence put up by two palatine Franks, Malarichus and Mallobaudes I,⁴⁹ who claimed that men dedicated to *imperium* were being oppressed by *factiones*, indicates that the tribunes, and perhaps the private citizens, named in the forged letters were themselves Franks. This refers not solely to Silvanus, but to other northern leaders like Laniogaisus. The plot then, initially directed at northern barbarian commanders, had widened to include the Franks in Constantius' court (specifically Frankish officers in the *scholae palatinae*).

Malarichus and Mallobaudes I must have been part of Silvanus' friendship and kinship network. They were both Frankish *tribuni* at Constantius' court who commanded *gentiles* and *armaturae*, elite fighting units of *scholae palatinae*. Ammianus tells us that when the plot intensified and Malarichus was himself accused of complicity, he summoned his fellow Franks, "of whom a great number were prospering at that time in the palace".⁵⁰ The prominence given the *gentiles* and *armaturae* in Ammianus' account indicates that the "great number" (*multitudo*) of Franks were directed into these units, some of which were under Frankish commanders, and so they prospered with their kin. Malarichus proposed to fetch Silvanus from Cologne in order to answer the accusations, and he offered to tender his "relatives" (*necessitudines*) as surety.⁵¹ Malarichus' "relatives" could be both women and children, as well as men of fighting age, and are part of his kinship group absorbed into Roman structures. Silvanus, too, must have been part of this Frankish kinship network in 355. His original appointment was received with such distrust that he left his son at court as a hostage in order to demonstrate his loyalty;⁵² a reason he is said to have given Ursicinus for his usurpation was that he had been cruelly persecuted through the investigation of his *familia*;⁵³ and after his death he was accused of not having worried about the safety of his son and of his *friends and relatives* at Constantius' court.⁵⁴ In 355, the conspiracy directed against Silva-

49 Mallobaudes I's Frankish identity is indicated by the context of Ammianus' account of the usurpation of Silvanus (esp. 15.5.6) and implied by his namesake, the *rex Francorum*, Amm. 31.10.6.

50 *Quorum ea tempestate in palatio multitudo florebat*, Amm. 15.5.11. The admission of Franks to the palatinate guard could be swift: powerful formations of Franks which surrendered in the winter of 357–58 were "immediately sent to the imperial retinue of the Augustus" (*statim ad comitatum Augusti sunt missi*), Amm. 17.2.3.

51 [*Malarichus*] *petebat ut ipse relictis obsidum loco necessitudinibus suis, Mallobaude armaturarum tribuno spondente quod remeabit, velocius iuberetur ire ducturus Silvanum*, Amm. 15.5.6.

52 Julian, *Or.* 2.98C.

53 [*Silvanus*] *ipse quidem per quaestiones familiarium sub disceptatione ignobili crudeliter agitatus*, Amm. 15.5.28.

54 εἰ δέ, ἀνελπίστου μὲν οἱ τοῦ παιδὸς τῆς σωτηρίας τυγχανούσης, χαλεπῆς δὲ καὶ ἀδυνάτου τῆς τῶν φίλων καὶ τῶν συγγενῶν, τὴν ἀπιστίαν ὁμῶς προείλετο, Julian, *Or.* 2.100B.

nus reveals a large number of Franks absorbed into Roman structures at the highest level with their kin.

The attempt to implicate the palatine Franks failed. Neither Malarichus nor Mallobaudes I, nor any of the unknown Frankish *tribuni*, fell with Silvanus' co-conspirators. Silvanus' own fate is well known. Instead, let us return to Laniogaisus' advice to him not to seek sanctuary among the Franks. In issuing the warning that the Franks would betray him, Laniogaisus is saying that Silvanus would be treated as a usurping emperor and be either killed or ransomed back. At issue here is Silvanus' status and the illegitimacy of his position, not his identity. It follows that the example of Silvanus cannot be used to show the severance of northern kinship structures.

The functioning of Germanic kinship groups in Roman structures in the fourth century need not be a cause for surprise. The prohibition on soldiers' marriages, enforced (loosely) in the early empire, was lifted by the end of the second century, and in the late empire it became common for families to accompany troops.⁵⁵ A law dated to 349 permits the wives, children and slaves of troops to use the imperial post.⁵⁶ Another law dated 364 allows for the sons and "kinsmen" (*propinqui*) of the emperor's household guard (the *domestici*) to be attached to the guard and be granted a subsistence allowance, even if they are not suitable for bearing arms.⁵⁷ In a further instance (A.D. 367), sutlers capable of fighting are forbidden to be harboured as soldiers' kinsmen.⁵⁸ Elsewhere, however, there is legislation (A.D. 362) restricting the number of *domestici* receiving rations for their animals (*capita*) to those in the *scholae* and to 50 *in praesente*, others shall not receive personal or fodder allowances and are forced to return *ad plurimos suos ac terras*.⁵⁹ It is probable that the Germans caught by this legislation are being compelled to return to their own people and homelands (again suggesting cross-border movement).

When the auxiliary unit, the Petulantes, composed chiefly of northern Gauls and Germans, was ordered to go to the east, Ammianus says that they were allowed to go "with their families" (*cum familiis*). The word *familia* is sometimes ambiguous, but it means "families" here because Ammianus also writes of the fear expressed by these troops that they would be sent without their "children and wives" (*liberi et coniuges*).⁶⁰ Among the general lamentation at

55 R. MacMullen, *Soldier and Civilian in the Later Roman Empire* (Cambridge Mass., 1963) 126–27. For the presence of wives: Herodian 3.8.5; Libanius, *Or.* 2.39.

56 *Cod. Theod.* 7.1.3. For the provisioning of military *familiae*, *Cod. Theod.* 7.4.17 (377), 7.4.28 (406), 7.4.31 (409).

57 *Cod. Theod.* 6.24.2.

58 *Cod. Theod.* 7.1.10. Camp followers were numerous. As a soldier Saint Martin was exceptional in being accompanied only by one slave, Sulp. Sev. *Vita Martini* 2 (in *CSEL* 1, p. 112).

59 *Cod. Theod.* 6.24.1.

60 Amm. 20.4.11, 20.8.8.

the prospect, women who had babies fathered by the troops pointed to the children and begged not to be deserted.⁶¹ In a northern context, perhaps it was more natural for women to accompany their menfolk on campaign. The association of women and warfare had captured the imagination of earlier authors. Tacitus observed that Germans fought in groups formed by family and kinship group, and that women went on campaign in order to instil valour in their men;⁶² they are also said to have joined the fray in victory and defeat.⁶³ Forced separation cut against local cultural tradition.

A Germanic officer who may have fought with Magnentius is later found at Ascalon in Egypt, in 359. A papyrus records a Flavius Agemundus of the *auxilia Constantiana* selling his Gallic slave. He and his slave may have been transferred from Magnentius' defeated army to the *auxilia*, and Agemundus himself appears to be in charge of the unit's *familia*.⁶⁴ We cannot estimate the extent to which the law forbidding the marriage between *gentiles* and Romans was observed, but we may presume that a proportion of the women who accompanied Germanic troops were Germanic women. An instance in the late Roman army of such a companion is a certain Suandacca (?) who, in the late fourth century, erected a tomb to her spouse from the *numerus Batavorum seniorum*, with whom she had lived for twenty two years.⁶⁵ The Batavi are not necessarily a homogenous Germanic unit and Suandacca is not necessarily a Frankish or Germanic woman, but Franks and other Germans were certainly part of the developing importance of the *familia* in the late Roman army.

The chief example of specifically Frankish kinship groups functioning within Roman structures occurs with the last two great Frankish officers in Roman service in the fourth century, Bauto and Arbogastes.⁶⁶ Bauto was of transrhene birth and, like many Germanic soldiers, rose rapidly in Roman service. Nothing is known of his career until he appears in c. 380 in the preeminent office of *magister militum*.⁶⁷ He established his position in the

61 Libanius, *Or.* 18.95.

62 *Germ.* 7.3–4.

63 Plutarch, *Marius* 19.7, 27.1–2; Florus 1.38.16–17.

64 *BGU*, 316. U. Wilcken believes that a reserve of young troops was among the unit's *familia*, "Papyrusurkunde über einen Slavenkauf aus dem Jahre 359 n. Chr.", *Hermes* 19 (1884) 422. His identification of Agemundus as a Frank is not certain. The transfer of the disgraced regiments, the Magnentiaci and Decentiaci (Amm. 18.9.3), is a prominent example of the relocation of northern forces and it should explain Agemundus' presence in the east.

65 In D. Hoffmann, "Die spätromischen Soldatengrabschriften von Concordia", *Museum Helveticum* 20 (1963) no. 20, p. 41. Hoffmann reads the name Suandacca as Celtic (as in n. 8) 105–6.

66 For their and Richomer's political influence, Stroheker (as in n. 3) 323–30.

67 Waas (as in n. 4) 91.

central administration and, in arranging the defence of the Alps in the 380s, he sided with the centre against the threat from Maximus in the north.

Bauto's military authority enabled him to adopt a position of influence well beyond his public duties. He gained a degree of independence from, and authority over, the young Valentinian II, and was accused of "pulling the strings" behind the throne.⁶⁸ Bauto's influence stemmed from his military position as evidenced by his use of barbarians against the northern usurper Maximus in 383–84.⁶⁹ In this instance, he appears to be much like contemporary Gothic generals who raised and commanded federate units for employment by the central administration.⁷⁰

From his position of virtual control over Valentinian's court, Bauto pursued his own personal agenda. His kinship ties are informative. Bauto's successor to the post of *magister militum* was another Frank, Arbogastes. Zosimus believed that Arbogastes seized the office at Bauto's death,⁷¹ but, according to a fragment of John of Antioch, Arbogastes was actually *his son*.⁷² This indicates that Arbogastes inherited the office because of kinship ties. Even if Arbogastes were not the son of Bauto, the tradition which arose connecting the two suggests that either there was some kinship relationship between them or that Arbogastes' position was strengthened by positing such a link. In similar fashion, Bauto's daughter Eudoxia was sent to Constantinople for her education, in order to forge ties with the eastern empire. There, she married the emperor Arcadius in 395. Bauto's ability to advance the interests of his kin, and the ability of his kin to exploit real or spurious ties with him, anticipate the early fifth century and Stilicho's attempt to have "imperial power" (*regnum*) conferred on his son.⁷³

Arbogastes, like Bauto before him, dominated Valentinian II. He is reported to have told Valentinian that, as he did not owe his office to the Augustus, the Augustus could not depose him.⁷⁴ Valentinian was unable to rid himself of the tyranny of his overbearing *magister militum* and, according to Sulpicius Alexander:

The emperor Valentinian was imprisoned in the palace at Vienne and reduced almost to the state of a private citizen. The care of military affairs was given over to the Frankish accomplices [of Arbogastes] and civil administration was passed on to Arbogastes' sworn followers. No one

68 *Ille Bauto, qui sibi regnum sub specie pueri vindicare voluit*, Ambrose, *Ep.* 24.4 (in *PL* 16, col. 1080).

69 Ambrose, *Ep.* 24.6–8 (in *PL* 16, cols. 1080–81).

70 Hence Ammianus' lament (31.16.8) about the paucity of Roman commanders after 378.

71 Zosimus, 4.53.1–3.

72 John Ant. fr. 187 (= Eunapius, fr. 58.2 [ed. Blockley]); A. Demandt, "Magister Militum", *RE Suppl.* 12 (1970) col. 609.

73 *Chron. Gall.* 452.55.

74 Zosimus, 4.53.3.

could be found from all those bound by their military oaths who dared to obey the household instructions or public commands of the emperor.⁷⁵

Valentinian died in suspicious circumstances in 392, and Arbogastes filled the vacancy with a dupe of his own making, the court rhetorician Eugenius. The only legitimate claim Eugenius had to *imperium* was the power and authority of his *magister militum*. Arbogastes' influence was based on his personal and kinship ties: with his Frankish "accomplices" and "sworn followers", he controlled the central administration and oversaw the transfer of the court to the Gallic provinces.

Arbogastes also maintained tribal relations. He campaigned beyond the Rhine in order to revenge an incursion by two Frankish princes (*subregoli* [sic]). Our source, Sulpicius Alexander, perceives this revenge, not in terms of a Roman general protecting a Roman province, but in terms of tribal warfare: Arbogastes pursued the *subregoli* "attacking with tribal hatred" (*gentilibus odiis insectans*).⁷⁶ In other words, he upheld the interests of one Frankish tribe, his own, against others.

Orosius observes his preparations for the march on Italy:

He [Arbogastes] himself a barbarian, seeking to control the empire, outstanding in courage, judgement, valour, boldness, and power, assembled from all sides innumerable unconquered forces, either from the garrisons of the Romans or the auxiliaries of the barbarians, relying on, in one case, his power, and in the other, *his kinship*.⁷⁷

Thus, Arbogastes' power was based on both the public authority of the office of *magister militum* and on private kinship ties.

When the extent of Germanic recruitment in the fourth century and the evidence of extended Germanic families present within Roman structures are understood, it is not surprising that kinship ties operate within Roman structures. The Goth Gainas gave his kinsmen command of army units.⁷⁸ Arbogastes, who relied on his kin serving in auxiliary units as well as his maintenance of transrhene ties, may have done likewise.

75 *Clauso apud Viennam palatii aedibus principe Valentiniano paene infra privati modum redacto, militaris rei cura Francis satellitibus tradita, civilia quoque officia transgressa in coniurationem Arbogastis; nullusque ex omnibus sacramentis militiae obstrictis reperiebatur, qui familiari principis sermoni aut iussis obsequi auderet*, Sulpicius Alexander in Greg. Tur. *LH* 2.9.

76 In Greg. Tur. *LH* 2.9; cf. Paulinus, *Vita Ambrosii*, 30 (in *PL* 14, cols. 39–40).

77 *Ipse [Arbogastes] acturus imperium uir barbarus, animo consilio manu audacia potentiaeque nimius, contraxit undique innumeras inuictasque copias, uel Romanorum praesidiis uel auxiliis barbarorum alibi potestate alibi cognatione subnixus. Historia aduersus paganos* 7.35.11.

78 Soc. *HE* 6.6.

Arbogastes wielded considerable authority, especially between 392 and 394. The marriage of his sister (according to John of Antioch) Eudoxia to Arcadius may have been an attempt to win influence among the latter's soldiers.⁷⁹ Eudoxia was the daughter of a Frank, but she was acceptable because she had grown up in Constantinople. By the late fourth century, there was exotic precedent for marriage connections between imperial Romans and regional authorities. Gallienus pretended to be married to Pipa, the daughter of a Germanic king;⁸⁰ and in a fictional but evocative case Bonosus, the usurper in Cologne, had earlier married a Gothic noblewoman in order to learn the plans of the Goths.⁸¹ Arbogastes was dead by the time of the marriage but he had been a powerful military symbol in the west and his name continued to carry weight among his soldiery.

The modern assumption that fourth-century Franks were loyal to the Roman empire can be traced to the favourable portrayal of Frankish officers by the soldier-historian Ammianus Marcellinus. However, it must be remembered that Ammianus had an axe to grind. The influence of the imperial entourage of sycophants and perfumed conspirators who plot the downfall of famed generals and their like is a recurring theme in his *Res Gestae*. Ursicinus, the patron of the young Ammianus, is the prime example. In contrast to the sycophants, men of proven military *uirtus* are praised, men like Silvanus, Malarichus and Mallobaudes II. Ammianus may not have warmed to barbarians, but high-ranking Frankish officers do fit his mould of military *uirtus*. Such worthy men are whitened in his narrative, while the intriguers and sycophants are blackened as the root of all evils.

Ammianus' military perspective and his account of the Silvanus affair have given rise to modern generalisation of Frankish loyalty to the Roman empire and the belief in the severance of societal links. These generalisations require revision because they obscure important processes at work. Franks serving in Roman structures do retain ties with their kin outside the empire and with each other inside the empire. Furthermore, there is evidence of the existence of kinship groups at the highest levels within late Roman society, which, in turn, implies their greater occurrence at lower levels.

The existence of such families and kinship groups, otherwise lost to history, has important implications for the history of the late empire. Roman society in general was undergoing profound change, rather than remaining static and identifiably Roman up until the fifth century. The process whereby the family

79 Liebeschuetz (as in n. 3) 24. Arbogastes was able to command considerable loyalty from his army, Zosimus, 4.53.2, 4.54.4.

80 Aur. Vict. *Caes.* 33.6; with fictitious embellishment in 'Aur. Vict.' *Epit.* 33.1; *HA Trig. Tyr.* 3.4 and *Gall. Duo* 21.3.

81 *HA Quatt. Try.* 15.4–5.

was becoming a principle of government has been noticed in scholarship which concentrates on the central administration. Matthews observes the blurring of public and private power, in particular in regard to the personal interests of senators, the ascendancy of Ausonius and Theodosius' reliance on his relatives.⁸² The theme of the privatisation of power in the late empire is developed by other authors from the centralist perspective.⁸³ The contribution here is that power is 'private' on provincial, lower class and non-Roman lines, as well as central, aristocratic and Roman lines. Non-Roman kinship groups were functioning beside Roman ones within Roman structures. The family is, and most likely always was, the most important social structure across northern Europe.

This does not mean that the Franks were an insidious and dangerous threat to the Roman empire, but that, because of co-existing loyalties, their allegiance was bifocal and inherently unstable. Their strongest ties were to private individuals, their kin. Private kinship loyalties overrode loyalty to public office, loyalty to a lofty and antiquarian ideal of empire and loyalty to an often distant central administration.⁸⁴

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82 *Western Aristocracies and Imperial Court A.D. 364–425* (Oxford, 1975) 23, 69, 109–11, 143–44, 357, 387. See also the earlier observations by A. Alföldi, *A Conflict of Ideas in the Late Roman Empire. The Clash between the Senate and Valentinian I*, trans. H. Mattingly (Oxford, 1952) 18–19.

83 In most detail, R. MacMullen, *Corruption and the Decline of Rome* (New Haven & London, 1988), see especially ch. 3 "Power for sale".

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